

SENATE No. 2710

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, November 10, 2025.

The committee on Senate Rules to whom was referred the Senate Bill addressing challenges facing public libraries and digital resource collections (Senate, No. 2330), - reported, in part, a "Bill addressing challenges facing public libraries and digital resource collections" (Senate, No. 2710).

For the committee,
Joan B. Lovely

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An Act addressing challenges facing public libraries and digital resource collections.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) As used in this act, the following words shall have the following meanings unless the
2 context clearly requires otherwise:

3 “Access”, any proper means by which a person may read or use digital resources, print
4 materials, records or other information held by a public library.

5 “Digital resources”, any books, textbooks, workbooks, videos, databases, newspapers,
6 magazines, periodicals, charts, graphs, movies, games, maps, interactive applications, software
7 and other educational or entertainment materials in any electronic format, .

8 “Print materials”, primarily paper-based materials found in physical or hard-copy format.

9 “Public library”, (i) public library; (ii) public school library; or (iii) public research
10 library.

11 (b) There shall be a special legislative commission to assess and address challenges faced
12 by public libraries and digital resource collections.

(c) The commission shall: (i) study the cost trends and expenditures of public libraries within the commonwealth relative to digital resources and collections; (ii) study patron use of, and satisfaction with, digital resources; (iii) research the opinions of legal experts and scholars relative to the differences between existing licensing for digital resources and the use of print materials and how these differences may impact patron experience and access to diverse collections; (iv) research and describe how patron privacy records and metadata are kept, used, accessed and sold as it relates to patron use and access of digital resources through a public library; (v) make recommendations addressing the security and privacy of data related to digital resources; (vi) identify and describe concerns, if any, regarding patron protection and access issues relative to digital resources; (vii) investigate and summarize the actions of other states in addressing digital resource creation; (viii) examine the impact of digital resources on library users; and (ix) recommend legislative and executive action to: (A) support the sustainability of diverse digital resources in public libraries; (B) better support access to diverse digital resources; (C) enable the continuation of public lending to all residents; and (D) protect patron data in the course of digital resource use.

(d) The commission shall consist of: 2 persons appointed by the speaker of the house of representatives, 1 of whom shall be designated as co-chair by the speaker of the house of representatives; 2 persons appointed by the president of the senate, 1 of whom shall be designated as co-chair by the senate president; 1 person appointed by the minority leader of the senate; 1 person appointed by the minority leader of the house of representatives; the director of the board of library commissioners or a designee; the attorney general or a designee; the director of the Massachusetts office on disability or a designee; the president of the Massachusetts Library Association; the president of the Massachusetts School Library Association; the

36 president of the Boston public library or a designee; the executive director of the Massachusetts
37 Center for the Book, Inc.; and 5 members who shall be appointed by the governor, 1 of whom
38 shall be a research librarian from a public research institution of higher education, 1 of whom
39 shall be a representative of the Association of American Publishers, Inc., 1 of whom shall be a
40 representative of a digital distributor of electronic books, 1 of whom shall be an expert in the
41 field of intellectual property or copyright law and 1 of whom shall be an expert in consumer
42 protection laws.

43 (e) The co-chairs shall direct the schedule and work of the commission. A simple
44 majority vote of the commission members present may be requested for any actions of the
45 commission and all members of the commission shall have a vote. The co-chairs may create
46 subgroups to focus on specific responsibilities of the commission. The co-chairs may invite
47 guests to participate in meetings as speakers.

48 (f) The commission may seek assistance from outside experts at the discretion of the co-
49 chairs. The commission may use consulting and research firms in the course of its study, subject
50 to appropriation.

51 (g) Not later than October 15, 2026, the commission shall submit a report with its
52 findings and any recommendations to the clerks of the house of representatives and senate, the
53 governor and the attorney general.